



CHAPTER xciv.

An Act to empower the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne to grant allowances to their employees in certain cases and for other purposes.

A.D. 1937.

[20th July 1937.]

WHEREAS the city and county of Newcastle-upon-Tyne is a municipal and county borough under the government of the lord mayor aldermen and citizens of the said city and county (hereinafter referred to as "the Corporation") acting by the council:

And whereas it is expedient that the Corporation should be empowered to grant allowances to certain of their employees in accordance with the provisions of this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

23 & 24
Geo. 5. c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present

A.D. 1937. Parliament assembled and by the authority of the same
— as follows :—

Short title. **1.** This Act may be cited as the Newcastle-upon-Tyne Corporation Act 1937.

Interpre- **2.** In this Act unless the subject or context other-
tation. wise requires—

“ the Corporation ” means the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne ;

“ service ” means whole-time or part-time service in the permanent employment of the Corporation after an employee has attained the age of eighteen years ;

“ employee ” means any person in the permanent employment of the Corporation ;

“ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the said city and county.

Power to
grant
allowances
in certain
cases.

12 & 13

Geo. 5. c. 59.

59 & 60 Vict.
c. 50.

3.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Acts 1925 to 1934 or the Teachers (Superannuation) Acts 1918 to 1935 or any other Act for the time being in force relating to the superannuation of teachers and in which the employee is not entitled to benefits under the Local Government and other Officers' Superannuation Act 1922 or the Poor Law Officers' Superannuation Act 1896 grant to any employee who having completed fifteen years' service may become incapacitated through age sickness or other infirmity a weekly allowance not exceeding—

(i) a sum calculated at the rate of sixpence for each year of his service ; or

(ii) the sum of one pound ;

(whichever shall be the less) and for the purpose of calculating any sum under the foregoing head (i) any period of service greater than six months in excess of a complete number of years shall be reckoned as one year.

(2) Every such allowance shall be charged on and paid out of the fund or funds out of which the wages or emoluments of the person receiving the allowance would have been paid if he had continued in his employment.

(3) The provisions of this section shall be deemed to have come into operation on the first day of August one thousand nine hundred and thirty-six and the Corporation may accordingly continue after the passing of this Act to pay to any person who was an employee and who was so incapacitated as aforesaid on or after that date and before the date of the passing of this Act any such allowance as aforesaid granted by the Corporation before the last-mentioned date as if such allowance had been granted under the powers conferred by this Act. A.D. 1937.
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4. Every allowance granted under this Act shall be payable to or in trust for the person to whom the allowance is granted and shall not be assignable or chargeable with his debts or other liabilities. Allowance not assignable.

5. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate. Costs of Act.

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